7. A Post graduate degree or diploma in management by any university or from Indian Institute of Management.
8. A diploma in company law granted by any Indian Law Institute.

Who is required to have company Secretary?

All listed company and all other company having paid-up capital of rs. 5 crore or more shall have whole-time Company secretary.

10.7 Process for appointment of Company Secretary

1. Arrange for board meeting after giving notice to the directors.
2. Discussion must be made in the meeting regarding the terms and conditions at which the company secretary is proposed to be appointed.
3. Obtain a written consent from the person who is going to be appointed as company secretary.
4. Inform the Stock Exchange within 15 days of the Board meeting about the outcome of the meeting by letter or fax.
5. File the relevant form within 30 days from the date of appointment to the Registrar of companies.
6. Make necessary entries in the Register of Directors and Secretary.

10.8 Draft format of Board Resolution: Appointment of Company Secretary

"Resolved that Pursuant to provisions of section 203 of Companies Act 2013 and Rule 8 and Rule 8A of companies appointment and remuneration of Managerial personnel Rules 2014"

Mr_____ company secretary (ACS| FCS no_____) be and is hereby appointed as the whole time company secretary of the company with effect from (date) on such terms and conditions as decided and agreed by and between the Board and Company Secretary.

FURTHER RESOLVED THAT Mr._____ director of the company and is hereby authorized to file necessary eforms and documents with Registrar of the company and to do all other such acts, deeds and things which are necessary to give effect to above resolution"

10.9 Duties of the Company Secretary

Duties of the company secretary may be of two kinds a, Statutory duties b, General duties

A. Some of the statutory duties of a company secretary are

1 Under the Companies Act:
   i. To sign any documents requiring authentication by the company.
   ii. To give notice to Registrar regarding increase in share capital.
   iii. To deliver share certificate of allotment within two months after transfer.
   iv. To send notice of general meeting.
   v. To sign the annual return.
   vi. To sign every balance sheet and profit and loss account in case of non-banking financial company
   vii. To prepare minutes of every meeting (Board meeting, General meeting)

2. According to Income tax Act:
   i. He has to ensure whether proper Income Tax is deducted from employees salary.

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